

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502928	TNRD MANAGEMENT, LLC vs LE	MOTION TO COMPEL DEFENDANT BLOOMSTONE'S RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling: The unopposed motion is granted and sanctions are awarded in the amount of \$310.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2205432	TRACY III vs CITY OF HEMET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Plaintiffs Joseph Tracy Iii and Gina Tracy, individually and as successors-in-interest to Joseph Thomas Tracy IV ("Plaintiffs") allege that on January 18, 2022, Decedent Joseph Tracy IV ("Decedent") was a guest at the Travelodge located on Florida Ave. in Hemet. (TAC, ¶ 19.) Multiple men dressed in street clothing, including Defendants Sergeant Paez and Detective Kerr and several other peace officers who were not easily identifiable as law enforcement officers, aggressively approached Decedent in the parking lot of the Travelodge, although there had been no report of a violent crime or ongoing threat to the safety of the officers. (TAC, ¶¶ 19-20.) Decedent ran away and took cover next to a vehicle. (TAC, ¶ 21.) At no time did any of the men pursuing Decedent identify themselves as police officers. (TAC, ¶ 21.) While Decedent was taking cover, Sergeant Paez and Detective Kerr fired their weapons for a total of approximately 15 rounds, and several rounds struck Decedent causing his death. (TAC, ¶¶ 22-26.) At no time did Sergeant Paez or Detective Kerr provide any warning that they were going to shoot before discharging their firearms. (TAC, ¶ 29.) Decedent was not visibly or otherwise armed at the time he was shot, and the actions of Detective Kerr and Sergeant Paez has no bearing on any investigative purpose. (TAC, ¶¶ 30-32.)

Plaintiffs filed the Complaint on December 15, 2022 and the Operative Third Amended Complaint ("TAC") on November 9, 2023. Plaintiffs assert three causes of action for: (1) Assault and Battery (against all Defendants); (2) Negligence; and (3) Violation of the Tom Bane Civil Rights Act.

The City of Riverside and Detective Kerr ("Defendants") now move for summary judgment, or in the alternative, summary adjudication of each cause of action and the claim for punitive damage. Defendants argue that the use of deadly force was objectively reasonable. Defendants argue that the first cause of action fails because there is no evidence of an intentional touching by Kerr since the evidence shows that the bullets that killed Decedent were not fired from Kerr's gun. Defendants argue that